The examination is being carried out on the **following application documents**

Description, Pages

1-18 filed with entry into the regional phase before the EPO

Claims, Numbers

1, 2 filed with entry into the regional phase before the EPO

Drawings, Sheets

1/16-16/16 filed with entry into the regional phase before the EPO

Prior art

1. Reference is made to the following document:

D1 KR 2007 0000209 U 16 February 2007 (2007-02-16)

Novelty & inventive step

2. The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of claim 1 does not involve an inventive step within the meaning of Article 56 EPC:

Document D1 discloses (the references in parentheses applying to this document) an umbrella handle mounted on an umbrella including an umbrella canopy that is opened to protect against rain or folded, umbrella ribs supporting a lower surface of the umbrella canopy, and a link structure mounted to unfold or fold the umbrella ribs (figure 1), the umbrella handle comprising:

- a main pole that has an upper end binding part, having a structure disposed at a center of the lower surface of the umbrella canopy and bound to the umbrella ribs, mounted on an upper end and that extends a predetermined length downward (figure 1);

- a link driving part (10) mounted on an outer circumferential surface of the main pole to be movable by sliding in a vertical height direction and bound to the link structure by a hinge structure (ribs 3 are bound to the slider 10 by hinge structures; see figures 1 and 3);

- a downward extension pole (2) mounted to have a structure that is able to stretch downward from a lower end of the main pole or contract;

- a holding binding part (20) that is mounted on a lower end of the downward extension pole (figure 1), has a tubular structure that is able to be inserted into or withdrawn from a holding part (the part into which insertion portion 21 is inserted; figure 1), and has an operation switch (31) of the link driving part mounted on an outer circumferential surface; and

the holding part that has a tubular structure in which an insertion hole is formed in an upper surface to allow the holding binding part, the downward extension pole, and a lower sliding part of the link driving part to be inserted into or withdrawn and that has a structure held by a hand of a user (figure 4),
wherein the link driving part (10) includes an upper sliding part having a tubular structure mounted on the outer circumferential surface of the main pole to be movable by sliding in the vertical height direction (figure 2); the lower sliding part having a tubular structure (figure 2, lower part of slider 10) that is integrally formed with the upper sliding part (figure 2), is mounted on the outer circumferential surface of the main pole to be movable by sliding in the vertical height direction, and has an outer diameter that enables insertion or withdrawal into or from the insertion hole of the holding part (figures 2, 3); and a hinge binding part (hinge structures for ribs 3) ~~integrally mounted between the upper sliding part and the lower sliding part and extending a predetermined width toward both sides~~ to be bound to the link structure by the hinge structure, and
the downward extension pole includes a first extension part mounted by a sliding binding structure that is able to be inserted a predetermined depth into the main pole from the lower end of the main pole or discharged therefrom; and a second extension part mounted by a sliding binding structure that is able to be inserted a predetermined depth into the first extension part from a lower end of the first extension part or discharged therefrom (pillars 2 are telescopic),
~~wherein:~~
~~the holding binding part includes a second rail part having a structure that is formed to continuously protrude from both side surfaces of the holding binding part in the vertical height direction and formed to have a protruding part seated thereon and guide the protruding part to be movable by sliding in the vertical height direction;~~
~~the link driving part includes a first rail part having a structure that is formed to continuously protrude from both side surfaces of the lower sliding part in the vertical height direction, formed to be continuous with the second rail part, and formed to,~~

~~together with the second rail part, have the protruding part seated thereon and guide the protruding part to be movable by sliding in the vertical height direction; and the holding part includes a protruding part that has a tubular structure and has a structure formed to continuously protrude from both sides of the inner circumferential surface of the hollow structure in the vertical height direction and seated on the second rail part and the first rail part to be movable by sliding in the vertical height direction.~~

The difference between the subject-matter of claim 1 and D1 is that

the holding binding part includes a second rail part having a structure that is formed to continuously protrude from both side surfaces of the holding binding part in the vertical height direction and formed to have a protruding part seated thereon and guide the protruding part to be movable by sliding in the vertical height direction;the link driving part includes a first rail part having a structure that is formed to continuously protrude from both side surfaces of the lower sliding part in the vertical height direction, formed to be continuous with the second rail part, and formed to, together with the second rail part, have the protruding part seated thereon and guide the protruding part to be movable by sliding in the vertical height direction; and the holding part includes a protruding part that has a tubular structure and has a structure formed to continuously protrude from both sides of the inner circumferential surface of the hollow structure in the vertical height direction and seated on the second rail part and the first rail part to be movable by sliding in the vertical height direction.

It is therefore new (Article 54(1) and (2) EPC).

However, no inventive step (Article 56 EPC) can be attributed to the subject-matter of claim 1 because the claim is not clear (see point 4).

3. Dependent claim does not overcome the objection raised in point 4, and therefore no inventive step can be attributed to it either.

Article 84 EPC

4. The application does not meet the requirements of Article 84 EPC, because claim 1 is not clear:

The expression “a link driving part mounted on an outer circumferential surface of the main pole to be movable by sliding in a vertical height direction and bound to the link structure by a hinge structure” is unclear.

First, the term “link structure” does not appear to form part of the umbrella handle. Consequently, the claim is partly defined by reference to a second, unclaimed entity, which renders the wording unclear.

Second, it is not clear how the link driving part (120) as a whole, comprising the upper sliding part (121), the lower sliding part (122) and the hinge binding part (123), can be “bound to the link structure by a hinge”. If the hinge referred to is intended to correspond to the hinge binding part (123), both should be designated using the same terminology to ensure consistency and proper antecedent basis. In fact, it is not clear where this link structure is, nor what elements it entails, nor how it can be bound to the link driving part by a hinge.

Same applies to the term "link structure" on page 2 of the claims, line 6.

Further remarks

5. To meet the requirements of Rule 42(1)(b) EPC, D1 should be identified in the description and the relevant background art disclosed therein should be briefly discussed.

6. When filing amended claims the applicant should at the same time bring the description into conformity with the amended claims. The description should be amended to ensure that no feature of the independent claim is presented as optional (e.g. by using expressions such as “may,” “preferably,” or similar wording). All features of the independent claim must be consistently disclosed as mandatory in the description.

7. Some embodiments described in the application constitute alternatives to the first and second rail parts (specifically, the embodiments corresponding to Figures 3 and 4). These embodiments should be identified in the description as alternatives that do not form part of the present invention.

8. Claim 1 is a combination of original claims 1 and 4. Claim 2 is based on original claim 5. As such, the set of claims fulfils the requirements of Article 123(2) EPC.